

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0000273

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: BERNARDINA GLORIA
VELASQUEZ PERDOMO

and

RESPONDENT: FLORENCIO VICENTE
OSORIO

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD SUPPORT

RULING

This matter is on calendar following Petitioner's (Mother) May 13, 2026, Request for Order (RFOs for guideline child support for the parties' two minor children, Angel (DOB: 05/19/2013) and Irma (DOB: 06/17/2015). The matter was originally heard on June 11, 2026, and continued to July 2, 2026, for Respondent (Father) to get assistance from the Legal Self Help Center.

Mother submitted an Income and Expense Declaration on May 13, 2026, and reported zero income, \$1,100 income from partner support from a previous relationship, and \$1,110 contributed by her husband to her expenses. Mother reported that she does not file taxes. Mother stated she doesn't work because she stays home to care for a baby, but the infant is not listed or identified on page 3 of her IED.

Finally, as it relates to Mother's submissions, in her June 18, 2026, Declaration, Mother states that when they were a couple, Father told her that he earned \$35 to \$40 per hour as a painter.

Father submitted an Income and Expense Declaration on June 18, 2026, and submitted work calendars reporting income of \$1,920 for April 2026, \$1,740 for May, and \$1,600 for June. Father's reported earnings reflect \$1,753 average per month in self-employment income. Father reports that he does not file taxes and that his sister loans him money on the months he can't meet his expenses.

The parties agree that the children are with Father every weekend from Friday after school until Monday drop-off at school. $3 / 7 = 43\%$.

Assumptions/ Inputs Used in Guideline Child Support Calculation

The following monthly inputs were used in the xSpouse calculation:

Father:

\$1,753 in self-employment income

43% monthly time share

Mother:

\$1,100 partner support (listed under other nontaxable income)

One-half hardship for the child she has with new husband; Husband pays 100% of their expenses.

Guideline Child Support

Based on the foregoing, the Court orders as follows:

Effective May 13, 2026, guideline child support is ordered payable by Father to Mother in the amount of \$89 per month, payable one-half on the 1st and one-half on the 15th of each month. The low-income adjustment applies at the lowest amount of the range. Child support shall continue until further order of the Court, or until the child marries, dies, is emancipated, reaches age 19, or reaches 18 and is not a full-time high school student, whichever occurs first. The parties will share equally in reasonable uninsured health care costs incurred for the children, and the standard health insurance covered orders shall apply.

As authorized by CRC Rule 5.125, the Court will prepare the formal Findings and Order After Hearing (including Forms FL-342 and FL-192).

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001073

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: KIMMA BARRY

and

RESPONDENT: KEITH BARRY

NATURE OF PROCEEDINGS: REVIEW HEARING

RULING

This matter is on calendar for compliance review following an April 30, 2026, hearing regarding the parties' daughter Maggie (DOB: 10/18/2012).

On April 30, 2026, the Court awarded joint legal custody to the parties and sole physical custody to Petitioner/Mother. Mother was ordered, within 30 days, to provide Respondent/Father with documents from Maggie's doctors containing their recommendation that Maggie attend hospital-at-home online schooling, and, by June 26, 2026, an update regarding Maggie's school attendance from January 1, 2026, through the end of the academic semester. The parties were ordered to continue to work in joint therapy with a reunification therapist. Father was ordered to take a parenting class. Finally, the Court ordered that Maggie be seen by a dentist by June 26, 2026.

Mother filed a CPC questionnaire on June 26, 2026, stating that the parties are working on a global settlement. Mother filed a supplemental declaration providing an update on June 30, 2026.

Mother's supplemental declaration states: (1) Maggie has been diagnosed with dysautonomia, a disorder affecting the regulation of her autoimmune nervous system; (2) Maggie is enrolled at California Virtual Academies, an online public school; and (3) during the 2025-26 school year Maggie was enrolled for 180 days, was present for 156 days, and absent 24 days. Mother provided no information relating to dental care.

Mother requests that Maggie remain in Mother's primary physical custody as set forth in this Court's April 30, 2026, Order.

Parties are ordered to appear to address the provisions of the April 30, 2026, Order that have not been addressed in the filings of the parties (e.g., paragraphs 3, 5, 6, and 7).